

April 1, 2025

Tony Sambuca  
Sutphen East Corporation  
55 Innovation Drive  
Lake Ariel, PA 18436  
(570) 647-5916  
[tony.sambuca@sutphen.com](mailto:tony.sambuca@sutphen.com)

Proposal No: 15019-033125-CB  
**RE: PIRANHA P65 IRONWORKER**

Dear Tony,

In response to your request, it is a pleasure to offer the following information for your review.

If you have any questions or need additional information, please do not hesitate to call me.

Please review the Terms and Conditions of Sale.

Mid Atlantic Machinery, Inc. looks forward to a continuing relationship with your Company, helping you to fulfill all your Metal Fabrication needs.

Sincerely,

*Chris Barsanti*

Chris Barsanti  
CB/dm

April 1, 2025

Proposal No. 15019-033125-CB

**PIRANHA**  
**P65 IRONWORKER**



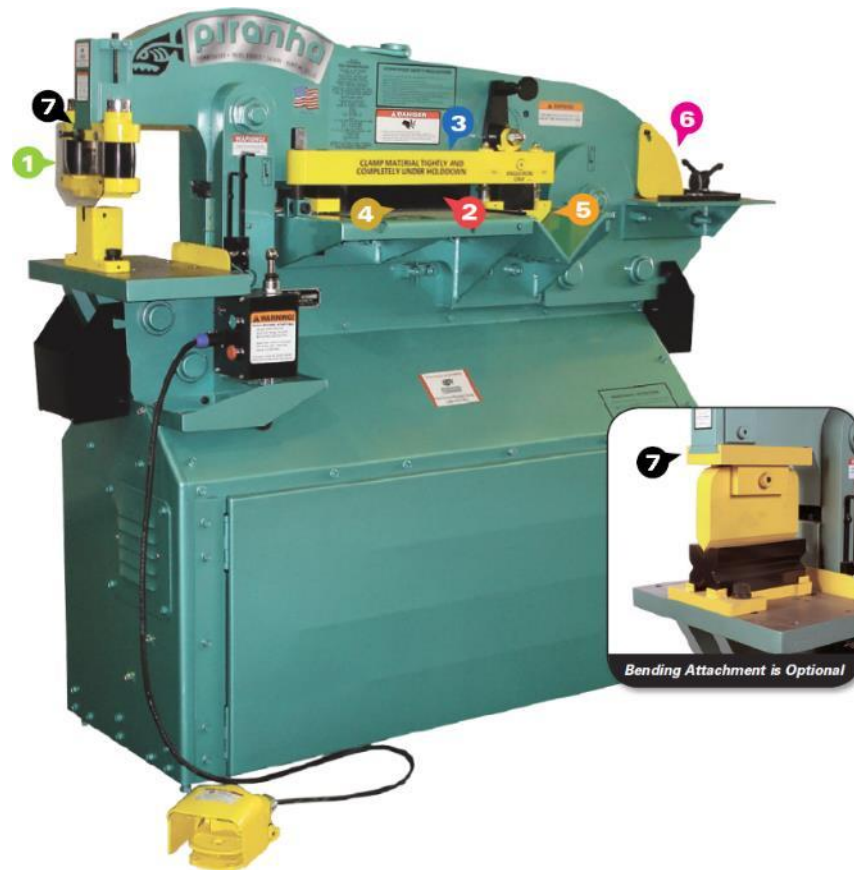
**P65 Machine Price including Standard Equipment Listed Below  
\$33,995.**

(Prices listed are ExWorks Rockford, IL, in USD and are valid for machines purchased and installed in the U.S.)

**STANDARD EQUIPMENT**

Automatic Hold Down  
Punch Holder, Stripper, & Die Block  
5 Punch & Die Sets 9/16" through 1-1/16"  
Set of Angle Knives  
Set 1" Round Bar Knives  
Set of 12-1/8" Plate Shear Knives  
Set of Coper Knives

Coupling Wrench  
3/8" Allen Wrench  
Set of Chip Buckets  
Extra Filter Element  
Foot Switch  
Instruction/Parts Book/Video Link



## STANDARD FEATURES

- 1. Urethane Stripper Attachment-** keeps material flat through the punching process, eliminating distortion. The shorter required stroke gives you a faster punching cycle.
- 2. Automatic Urethane Hold-downs-** clamps and releases material automatically with each stroke. Part movement is eliminated by clamping the part throughout the entire shearing cycle.
- 3. Visibility-** a direct line of sight over the hold down bar allows the operator to easily and accurately line up cuts to the shear blades.
- 4. Flat Bar Shear-** the low rake angle shear design results in flatter and higher quality sheared parts. Shear blades have four useable edges giving you a longer life and less expensive blades.
- 5. Angle Shear-** the floating upper blade seats in the center of the angle prior to cutting minimizing distortion giving you a higher quality cut.
- 6. Coper Notcher-** the low rake angle keeps part flat and under control during notching.
- 7. Quick Change Tooling-** the unique Piranha dovetail design allows for quick installation and removal of all standard and optional tools.

Piranha work stations are at a consistent, ergonomic level throughout the entire machine. Easily adaptable to material feed systems without the need to adjust the height between stations.



**MAXIMUM SPECIFICATIONS (rated on mild steel – 60,000 PSI Tensile)**

|                           |                                            |
|---------------------------|--------------------------------------------|
| <b>Punching (65 Tons)</b> | <b>1-1/16" diameter through 3/4" plate</b> |
| <b>Throat Depth</b>       | <b>8"</b>                                  |
| <b>Bending (Optional)</b> | <b>8" up to 24" w/4-way die block</b>      |
| <b>Round Bar Shear</b>    | <b>1/4" through 1-1/2"</b>                 |
| <b>Square Bar Shear</b>   | <b>1/2" through 1"</b>                     |
| <b>Flat Bar Shear</b>     | <b>15" x 5/8", 10" x 3/4"</b>              |
| <b>Angle Shear</b>        | <b>5" x 5" x 3/8"</b>                      |
| <b>Coping/Notching</b>    | <b>2-3/4" x 4" x 1/4"</b>                  |
| <b>Motor</b>              | <b>7.5 HP</b>                              |
| <b>Weight</b>             | <b>2,600 Lbs.</b>                          |

**DELIVERY**

Normal delivery is from stock subject to confirmation at the time of order. Price is ExWorks factory Rockford, Illinois and does not include any applicable sales tax or installation. **Up to twenty gallons** of ISO Grade 32 hydraulic oil is required. The machine is shipped totally wired through the electrical enclosure box. It has been left to the purchaser's discretion whether to wire direct to a disconnect or to install a cord and plug for mobility.

**SHIPMENT REQUIREMENTS**

MegaFab requires Flatbed Trailer(s), with adequate Chains and tarps (to cover full height and width), to assure protection of this equipment when using truck transportation. Please make sure that adequate deck space is allotted for machine and all accessories shipping with order. Upon request, MegaFab will arrange shipping to destination. Freight and insurance charges are the responsibility of the customer, and will be invoiced on machine order. Please consult the factory for any questions regarding shipping requirements.

**WARRANTY**

Twelve (12) months, covering parts against defects in materials or workmanship.

## AVAILABLE OPTIONS

### BENDING ATTACHMENTS

The bending attachments are designed to increase productivity on the punch end of the machine. They utilize the dovetail mounting system for quick and easy installation. The 8", 12" and 14" versions are mounted parallel to the beam allowing you unlimited throat depth and the 24" version mounts perpendicular to the beam. All bending attachments include 4-way bending dies with openings of 7/8", 1-1/8", 1-1/2" and 2".

|         |                               |         |
|---------|-------------------------------|---------|
| 4431648 | 8" Bending Attachment         | \$1,205 |
| 4431650 | 12" Bending Attachment        | \$1,755 |
| 4431652 | 14" Bending Attachment        | \$1,975 |
| 4431520 | 24" Bending Attachment        | \$2,855 |
| 4431960 | 24" Press Brake Tool Holders* | \$2,855 |

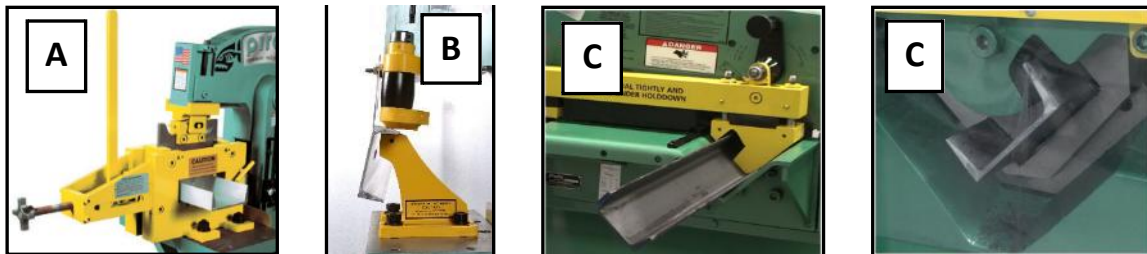
\*Tooling holders only. Does not include punch or die\*



### CHANNEL PROCESSING ATTACHMENTS

On the punch end of the machine we offer an adjustable Channel Shear capable of shearing 2"-6" standard channel. We also offer a Channel Die Block which replaces the standard die block and is designed to punch a hole in the leg or web of channel.

Channel Shear Kits are size specific channel shear blades and a hold down block that replace the standard angle knives and angle block and allows you to shear channel with no slug loss in the angle section of the machine.



|         |                                |         |         |
|---------|--------------------------------|---------|---------|
| 4431600 | Channel Shear 2"-6" adjustable | Photo A | \$3,848 |
| 4431615 | Channel Die Block              | Photo B | \$985   |
| 0230301 | Channel Shear Kit C 4x5.4#     | Photo C | \$1,095 |
| 0230312 | Channel Shear Kit C 3x4.1#     | Photo C | \$1,095 |

### OVERSIZE PUNCHING ATTACHMENTS

OverSize Attachments mount in place of standard punch attachment and are designed to punch a 50-ton maximum hole. Heavy Duty attachments and urethane stripping options for attachments 2-3/4" and larger are available upon request.

|         |                                        |         |
|---------|----------------------------------------|---------|
| 4431640 | 1-9/16" Oversize Punch Attachment      | \$1,425 |
| 4431622 | 2" 28XX Punch Attachment (2" Max Hole) | \$1,535 |
| 4431624 | 3" 28XX Punch Attachment (3" Max Hole) | \$1,590 |
| 4431626 | 4" 28XX Punch Attachment (4" Max Hole) | \$2,745 |
| 4431628 | 5" 28XX Punch Attachment (5" Max Hole) | \$2,800 |



## AVAILABLE OPTIONS (continued)

### QUICKSET GAUGING TABLES

The quickset gauging table option is a productivity tool for the punch end. The gauging table mounts around the die block and uses finger stops to repeat a series of punched holes in flat bar or angle. The attachment comes with a table and flat bar gauge with measuring rules for easy hole location layout. A 5' or 10' extension can be added to the left or right side of the base table for longer part processing.



|          |                                          |         |
|----------|------------------------------------------|---------|
| 44316201 | Punch Quick Set Table Attachment         | \$1,865 |
| 4431618  | 5' Quick Set Table Extension Attachment  | \$1,535 |
| 4431619  | 10' Quick Set Table Extension Attachment | \$1,975 |

### SHEARING BACKGAUGES

The backgauge option is a productivity tool for the shearing section. The backgauge mounts on the drop side of the machine and uses a compression sleeve for infinite, easy adjustment to gauge cut lengths in the angle, flat bar and round bar shearing stations. Electronic versions of this backgauge are available which automatically cycles the machine every time material contacts the backgauge probe. A support leg is included with the 9' and 12' versions.



|          |                             |         |          |                               |         |
|----------|-----------------------------|---------|----------|-------------------------------|---------|
| 44317501 | 3' Backgauge, manual        | \$2,195 | 44317503 | 3' Backgauge, electric        | \$6,155 |
| 44317506 | 6' Backgauge, manual        | \$2,415 | 44317507 | 6' Backgauge, electric        | \$6,375 |
| 44317509 | 9' Backgauge w/leg, manual  | \$2,855 | 44317508 | 9' Backgauge w/ leg, electric | \$6,595 |
| 44317502 | 12' Backgauge w/leg, manual | \$3,075 | 44317504 | 12' Backgauge w/leg, electric | \$6,815 |

### ROLLER FEED TABLES

The roller feed tables come in 5' lengths and can be bolted together to make longer sections for fast, easy feeding of plate or angle. Includes 20" wide rollers for flat bar and 6" rollers in the angle section. Adjustable to accommodate floor height and machine type.

|           |                      |         |
|-----------|----------------------|---------|
| 4431850-1 | 5' Roller Feed Table | \$2,305 |
|-----------|----------------------|---------|

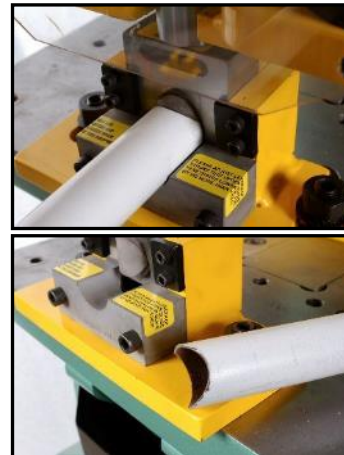


## AVAILABLE OPTIONS (continued)

### PIPE NOTCHING ATTACHMENTS

The pipe notching attachments mount easily on the platen table in place of the punch die block. This is a single notch system. To notch both sides of the pipe you must rotate the pipe and realign with the notching die for the second notch. The pipe notching attachment is made up of three separate pieces, the pipe notching die holder, the pipe notching die and the pipe notching striker.

- The pipe notching die holder is a universal die holder that bolts to the platen table and can accept 3/4" through 2" Schedule 40 Pipe Notching Dies
- The pipe notching dies are spring return die sets that mount in the pipe notching die holder. Standard sizes of pipe notching dies are 3/4", 1", 1-1/4", 1-1/2" and 2" Schedule 40. Other sizes of pipe and tube notching dies are available upon request but may require a different die holder.
- The pipe notching striker is an extended flat bottom punch used in your standard stripper assembly to press down the pipe notching die.



|         |                                      |       |
|---------|--------------------------------------|-------|
| 4433631 | Pipe Notching Die Holder             | \$292 |
| 4433642 | 3/4" Schedule 40 Pipe Notching Die   | \$476 |
| 4433636 | 1" Schedule 40 Pipe Notching Die     | \$476 |
| 4433637 | 1-1/4" Schedule 40 Pipe Notching Die | \$476 |
| 4433638 | 1-1/2" Schedule 40 Pipe Notching Die | \$476 |
| 4433639 | 2" Schedule 40 Pipe Notching Die     | \$579 |
| 4433640 | Fig. DH Pipe Notching Striker        | \$42  |

### PERFORMANCE / MOTOR OPTIONS

|        |                                                      |         |
|--------|------------------------------------------------------|---------|
| Option | Speed up kit increase to 45 strokes at 3/4" per min. | \$1,000 |
| Option | Single Phase Motor (Add to machine price)            | \$950   |

## COMPARISON CHART

Please use the below chart to help make a comparison between the Piranha Ironworker and other brands. We have filled in some capacities and features that are very beneficial to all ironworker users. Fill in the boxes provided for the other brands to help you make your comparisons.

| FEATURE                 | PIRANHA P65                                    |  |  |
|-------------------------|------------------------------------------------|--|--|
| PUNCH CAPACITY          | 65 TONS<br>1-1/16" HOLE IN 3/4" PLATE          |  |  |
| THROAT DEPTH            | 8"                                             |  |  |
| PUNCH AND DIES          | 5 PIECE SET<br>INCLUDED                        |  |  |
| FLAT SHEAR CAPACITY     | 15" OF 5/8" PLATE<br>10" OF 3/4" PLATE         |  |  |
| ANGLE SHEAR CAPACITY    | 5" X 5" X 3/8"                                 |  |  |
| NOTCHING CAPACITY       | 2-3/4" X 4" X 1/4"                             |  |  |
| PUNCH STRIPPING TYPE    | URETHANE CLAMPING AND<br>STRIPPING<br>INCLUDED |  |  |
| SHEARING HOLD DOWN TYPE | AUTOMATIC URETHANE<br>CLAMPING<br>INCLUDED     |  |  |
| PUNCH END MOUNTING TYPE | QUICK CHANGE<br>DOVETAIL SLIDE                 |  |  |
| WEIGHT                  | 2,600 LBS.                                     |  |  |
| INVESTMENT              |                                                |  |  |

**Price and specs are subject to change without notice.**

9. **WARRANTY; LIMITATION OF REMEDY.** Seller warrants the equipment sold hereunder (excluding software): (a) will conform to the specifications provided, or agreed to in writing, by Seller; and (b) will be free from defects in material and workmanship, for a period of twelve (12) months from date of shipment (the "Warranty Period"). Seller grants no warranty on tooling and consumables, and other perishable items including but not limited to punches and dies, plasma nozzles and electrodes, and laser cutting head optics, cover slides, nozzles, fiber tips, nozzle adapters, ceramic insulators and any other items located below the lower cover slide. Any goods covered by this warranty that are defective, will be repaired or replaced at Seller's option, as the sole and exclusive remedy available to Buyer under this warranty. Seller reserves the right to inspect the goods that are asserted to be defective to confirm its condition. THE WARRANTY CONTAINED HEREIN IS IN LIEU OF ANY OTHER WARRANTY, WHETHER EXPRESSED OR IMPLIED BY STATUTE OR OTHERWISE, INCLUDING ANY WARRANTY OF MERCHANTABILITY, FITNESS FOR PARTICULAR PURPOSE, OR NONINFRINGEMENT (WHICH WARRANTIES ARE HEREBY SPECIFICALLY DISCLAIMED AND EXCLUDED UNDER THIS CONTRACT). The warranties provided herein shall be void if (i) equipment is utilized by Buyer for a purpose or to perform a function for which such equipment was not designed or originally intended; (ii) any change, addition, alteration, modification or repairs have been made in or to equipment without Seller's prior written consent; (iii) where equipment is used with consumables, tooling, and/or accessories not furnished by Seller and/or modifications that have not been recommended or approved by Seller in writing; (iv) where Buyer has failed to utilize qualified maintenance and operating personnel in the operation and/or repair of the equipment; (v) where installation, maintenance and operation of the equipment has not been in strict accordance with applicable manuals and instructions furnished by Seller; or (vi) where equipment has been subject to misuse, negligence or accident in installation or operation beyond Seller's control.



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Harrisburg, PA 17112-2700  
Ph. (717) 541-1633 \* Fax (717) 541-8014  
[www.midatlanticmachinery.com](http://www.midatlanticmachinery.com)

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**DELIVERY:** To Be Determined at Time of Order  
**F.O.B:** ExWorks Rockford, IL  
**TERMS:** 100% Prior to Shipment  
(With Approved Credit)

Price for machine plus options (please circle options) \$ \_\_\_\_\_  
(Prepay & add freight to invoice)

Purchase order number (if applicable) \_\_\_\_\_

Please specify machine voltage \_\_\_\_\_

AP Contact Person \_\_\_\_\_

AP Contact Email Address \_\_\_\_\_

Accepted By: \_\_\_\_\_  
Tony Sambuca

\_\_\_\_\_  
Date

**Customer:**

Sutphen East Corporation

**Contact:**

Tony Sambuca

**Equipment Price:**

\$33,995.00

**Equipment:**

Piranha

**PAYMENT OPTIONS:**

|                 | Option 1   | Option 2 | Option 3 | Option 4 | Option 5 |
|-----------------|------------|----------|----------|----------|----------|
| Term (Months)   | 36         | 48       | 60       | 72       | 84       |
| Monthly Payment | \$1,117.08 | \$876.05 | \$730.55 | \$638.43 | \$573.16 |
| Payment Factor  | 0.03286    | 0.02577  | 0.02149  | 0.01878  | 0.01686  |
| Purchase Option | \$1.00     | \$1.00   | \$1.00   | \$1.00   | \$1.00   |
| Weekly Payment  | \$257.79   | \$202.17 | \$168.59 | \$147.33 | \$132.27 |
| Hourly Payment  | \$6.44     | \$5.05   | \$4.21   | \$3.68   | \$3.31   |

**2024 Section 179 Federal Income Tax Deduction:**

This deduction allows a small manufacturing company that spends less than \$3,050,000 but no more than \$4,270,000 million a year on equipment to deduct the first \$1,220,000 from their taxable income. 60% Bonus Depreciation is taken after deduction limit has been reached.

|                                                     |                 |
|-----------------------------------------------------|-----------------|
| Section 179 Deduction:                              | \$33,995        |
| 60% Bonus Depreciation Deduction:                   | \$0             |
| <b>Total First Year Deduction:</b>                  | \$33,995        |
| <b>Total Tax Benefit:</b>                           | <b>\$10,878</b> |
| Total Deduction x 32% (Assumed Federal Tax Bracket) |                 |
| <b>Equipment Cost After Tax Savings</b>             | <b>\$23,117</b> |

- Terms and conditions are subject to credit approval/market changes and may vary based on credit qualifications.
- Advance payments may be required and rates will be fixed for the term at commencement.
- Companies may also be eligible for additional state and local tax deductions plus interest deductions.
- These calculations are estimates only and every company's tax situation is different.
- MFR is not qualified tax advisor. This worksheet must not be interpreted as either a legal opinion or tax advisory.
- You should always consult with your accountant prior to making any purchase based on tax consequences.
- This document is for informational purposes only and does not constitute a commitment from MFR to provide financing.



For additional financing options and information, please contact:

Lisa Luedtke  
 lluedtke@mfresources.com  
 320-281-4200 - Direct  
 320-292-4610 - Mobile

# Mid Atlantic Machinery, Inc.

## TERMS AND CONDITIONS GOVERNING ALL QUOTATIONS AND ORDERS:

### QUOTATIONS AND ORDER ACCEPTANCES:

(A) This quotation, or proposal, from Mid-Atlantic Machinery, Inc. (hereinafter referred to as "MAM") **does not constitute an offer but is an invitation to place an order. The terms of this proposal shall be accepted by the buyer ("Buyer") upon Buyer's issuance of a purchase order and/or down payment.** All orders are subject to written acceptance by MAM. If an order based upon this proposal is accepted by MAM, it is agreed that the order shall be subject to the terms and conditions (the "Terms") set forth hereinbelow. It is also understood that if the order placed is pursuant to a government contract, it shall also be subject to any conditions required by laws of the United States and mandatory terms of such government contract as are disclosed to MAM. No contract term or condition shall be amended, deleted or added without the express written consent of MAM, and MAM hereby gives notice of objection to any terms set forth in any other writing which are in addition to or different from the terms set forth in this quotation.

(B) Orders based on our quotations are continuous, outstanding, and made by a duly authorized party.

(C) Orders based on our quotation are subject to acceptance upon sale confirmation and/or acceptance by manufacturer(s) or supplier(s).

(D) This quotation and all drawings, specifications, materials, patterns and special purpose manufacturing aids which are supplied to you by MAM shall be kept in confidence and shall be listed and maintained in suitable condition at the expense of Buyer and are to be considered the property of MAM held on consignment by Buyer and to be insured while in Buyer's possession. Such articles and all copies thereof from any source shall be returned to MAM at any time upon request and shall not be used for any third parties without the express permission of MAM.

(E) Any clerical errors are subject to correction and must be brought to the attention of MAM as soon as suspected.

### PRICING:

(A) All pricing is reflected in USD as standard. Prices in MAM's advertising materials and website are subject to change without notice. All specifications are subject to update, upgrade, and/or revision without notice.

(B) All sales are made subject to all state, county, city/local and federal use, sales and excise taxes and tariffs, the amount of which Buyer agrees to pay. Any such tax may be billed to the Buyer as part of the selling price or may be separately billed at any time by MAM, if MAM is required by any taxing authority to collect or pay such tax.

(C) Unless otherwise specified and agreed to by MAM in writing, prices are F.O.B. factory, at point of manufacture. Buyer is responsible and bears all risk of loss during transport once the machine(s) and/or other purchase(s) (the "Goods") leaves manufacturer. Buyer is responsible for all costs of transportation, including rigging, from the point of manufacture and is responsible for insurance on the Goods during transit. Buyer shall pay any additional charges for special packaging requested by Buyer.

### PAYMENT TERMS:

(A) As stated on proposal. Subject to credit approval at time of acceptance of order unless otherwise stated in quotation. Any unpaid balance thereafter shall be subject to a service charge of up to 1 1/2% per month or the maximum allowed by law, whichever is less. There shall be no extension or change in the time for payment due to delays in installation and/or delays in operation of the equipment caused by damage, warranty service or warranty replacement of parts.

(B) Buyer shall remain liable for all orders, notwithstanding any request by Buyer to direct an invoice to a third party.

### FORCE MAJEURE:

A party shall notify the other party hereto in writing within twenty-four (24) hours of the knowledge of a Force Majeure event, and neither party shall be considered to be in default of an accepted purchase order to the extent that its failure or delay in performance is actually caused by a Force Majeure. "Force Majeure" means acts of God or nature, acts or

declarations of civil or military authority (including government-ordered closures or lockdowns), fires, floods, epidemic, war, or like occurrences that are beyond the control and without the fault of either party, including but not limited to strikes or other labor troubles of port workers; however, strikes or other labor troubles involving a party, or its representatives shall not constitute Force Majeure. A party shall use commercially reasonable efforts to mitigate the effect of such Force Majeure and relief granted to the party experiencing Force Majeure shall be limited to an extension of the time of performance. If MAM experiences a Force Majeure event for more than ninety (90) days, Buyer shall have the right to terminate the accepted purchase order and is entitled to a refund of all monies paid to MAM subject to costs approved in advance by Buyer in writing.

### MODIFICATION OR CANCELLATION OF ORDER:

(A) Purchase orders accepted by MAM may be cancelled only with MAM consent, except as set forth above for certain cases involving Force Majeure. In the event of such consent, you shall pay to MAM promptly upon receipt of invoice from it:

(1) Contract price for all products which shall have been completed prior to receipt of notice of cancellation.

(2) All actual costs made or incurred by MAM in connection with the uncompleted portion of the order plus normal profit of the total contract price as partial liquidated damages.

(3) Cancellation charges if any of MAM on account of its purchasing commitments made under the order.

(B) All Goods paid by Buyer hereunder shall be delivered to Buyer in their "as-is" condition at the date of such cancellation at the sole cost and expense of Buyer.

(C) Any modification, addendums or change orders to add or remove items from the purchase order that are requested later than 10 business days after MAM's acceptance of the purchase order is subject to a change order fee, related to re-engineering time, rework, and/or restocking, in MAM's sole discretion.

### SHIPPING AND DELIVERY SCHEDULE:

(A) Subject to confirmation by factory at time of MAM acceptance of purchase order.

(B) Subject to unavoidable delays caused by Force Majeure, as defined herein.

(C) The terms of delivery are set in good faith and are approximate. All delivery times are estimates only and do not constitute commitments. Manufacture and/or delivery periods will not commence until written acceptance by MAM of the purchase order and MAM's receipt of any required initial deposit.

(D) Delays in delivery do not release the Buyer from its obligation to accept the delivery and does not give entitlement to claims for compensation by MAM, unless agreed otherwise by written acknowledgment. Buyer hereby agrees not to hold MAM liable for any compensatory, punitive, special, incidental or consequential damages, or any similar damages, whether foreseeable or not, arising from or relating to any delay in delivery and/or installation, including but not limited to: loss of profits, revenue or business opportunity; loss by reason of shutdown of facilities; loss because of inability to operate any machinery or facility at full capacity.

(E) In addition to the rights and remedies conferred upon MAM by law, MAM will not be required to proceed with the performance of any accepted purchase order if Buyer is in default in the performance of any order or contract with MAM and, in cases of doubt as to Buyer's financial responsibility, shipments under an order may be suspended or sent sight draft with bill of lading attached by MAM.

(F) Buyer is solely responsible for preparing its facilities for delivery and installation of the Goods, including but not limited to having suitable electrical service available, sufficient clearances for installation and positioning, and having capable load-bearing infrastructure.

### INDEMNIFICATION:

(A) Buyer agrees to save MAM harmless and indemnify MAM from and against any and all claims, judgments, and expenses of defense arising from or relating to: non-compliance with the applicable electric code; non-operation or faulty operation of any Goods; personal injury, loss or damages, whether direct, indirect, special, or consequential, in any degree resulting from, or contributed to by, inadequate or deficient or excessive or inappropriate electrical power supply for the operation of any Goods, wherever located, inadequate or incorrect instruction of operating personnel in

the use of any Goods, and improper or incompetent operation thereof including but not limited to overloading, abuse thereof, improper or inadequate maintenance thereof, use of any Goods for purposes or on materials for which the same is not intended according to its specifications or to generally accepted trade standards, or alteration or modification of any kind to such Goods unless previously and specifically approved in writing by MAM.

(B) As used herein, "expenses of defense" shall include all reasonable defense expenses and costs including (but not limited to) counsel fees incurred by MAM. "Improper or incompetent operation" as referred to above shall include, but not be limited to, failure to follow manufacturer instructions, generally accepted trade practices, warnings and recommendations and failure to comply with applicable federal, state and local laws and regulations. Said indemnification and exoneration against claims and judgments shall include, but not be limited to, those resulting from any legal theory of strict liability and from any theory of breach of warranty of any kind. In addition, as used above, the terms "improper or inadequate maintenance" shall include, but not be limited to, improper or inadequate installation performed by Buyer.

(C) Buyer agrees not to hold MAM liable for compensatory, punitive, special, incidental or consequential damages, or any similar damages, whether foreseeable or not, arising from or relating to any product malfunction or failure, including but not limited to: loss of profits, revenue or business opportunity; loss by reason of shutdown of facilities; loss because of inability to operate any machinery or facility at full capacity; damage to materials processed using the purchased products.

(D) These indemnification provisions shall supersede any inconsistent provision(s) in any document involving Buyer's purchase unless specifically agreed to in writing executed by MAM.

#### **WARRANTY:**

The Goods that are the subject of this sale have been manufactured by others. MAM makes no warranties, express or implied, in connection with this sale and, without limiting the generality of the foregoing, hereby expressly EXCLUDES any and all warranties of MERCHANTABILITY and warranties of fitness for a particular purpose. The warranties available to Buyer are those extended by the manufacturer to MAM to the extent that they are in force and effect, which warranties are on file at the offices of MAM and shall be assigned by MAM without recourse at Buyer's request. Performance and production data, including accuracy, capacity and capability of Goods are estimates only and not guarantees since they are dependent upon varying future production factors and conditions not within MAM's control. No agent, employee or representative of MAM has any authority to bind MAM to any affirmation, representation or warranty concerning the Goods that are the subject of this quotation beyond that specifically included in the written quotation. MAM shall have no obligation to install or provide improvements or changes in design adapted by the manufacturer or MAM for similar goods subsequent to acceptance of Buyer's order. In the event this quotation relates to used machinery, it is hereby agreed that MAM makes no warranties, express or implied in connection with the sale and, without limiting the generality of the foregoing, MAM hereby expressly EXCLUDES any and all warranties of MERCHANTABILITY and warranties of fitness for a particular purpose and Buyer takes such goods sold hereby in an "as-is", "where-is" condition.

#### **LIMITATION OF LIABILITY**

MAM does not warrant against and shall not be held responsible for any economic loss, loss of production or materials, property damage, product liability, personal injury, or any other claim by Buyer, its agents, employees, insurance carriers, subrogates, successors, assigns, or third parties arising out of the purchase and/or use of the Goods, except as expressly provided herein. In no event shall MAM be responsible for loss of profits, indirect, special, exemplary, or consequential damages, whether or not Buyer was aware of the possibility of such damages. MAM's liability to Buyer under this agreement shall be limited to the actual amount paid by Buyer for the Goods involved and shall in no event exceed MAM's applicable insurance coverage. These limitations will apply even if the limited remedy in this section fails of its essential purpose.

#### **COMPLIANCE WITH LAWS AND SAFETY REGULATIONS:**

(A) The contract resulting from the acceptance of an order pursuant to this quotation shall be governed by and construed according to the law of the Commonwealth of Pennsylvania without reference to its conflict of law provisions.

(B) MAM makes no guarantees or representations express or implied, that the Goods are in compliance with OSHA. MAM does not guarantee or confirm, express or implied, that the installation or the use of the Goods complies with OSHA.

(C) It is also Buyer's sole responsibility to comply with all requirements or recommendations of Buyer, OSHA, and any other local, state, federal, or international safety or other treaties, statutes, laws or regulations as they may pertain to the sale, transport, alteration and/or operation or use of the Goods.

(D) It is the Buyer's sole responsibility to assure the safe use, maintenance, and operation of the Goods and of all options, safety equipment, and additions.

(E) Buyer agrees that its agents and employees, when operating the Goods, will comply with all operating procedures set forth in manufacturer operator manuals and instructions, and Buyer further agrees not to remove or modify any safety device, warning sign, operator manual, manufacturer instructions, or work handling tools. Buyer shall notify MAM promptly of any accident resulting from use of the Goods and agrees to cooperate with MAM in investigating and determining the cause of any such accident.

#### **CONFIDENTIAL AND PROPRIETARY INFORMATION:**

(A) Except to the extent that information is clearly in the public domain, all information provided by Buyer to MAM during the performance of the purchase order and all improvements, modifications and derivations thereto shall be deemed to be the proprietary information of Buyer. MAM agrees to hold Buyer's proprietary information in confidence and to protect it from release.

(B) The appearance of MAM and/or manufacturer logos on products does not constitute a license for Buyer to use them for any other purpose. Buyer shall not publish or reproduce any physical or digital materials supplied by MAM and/or any manufacturer without prior written consent of the appropriate party.

(C) Buyer shall adhere to any manufacturer terms and conditions and governing law pertaining to protection of its trade secrets, copyrights, and other intellectual property (collectively, "IP"), and Buyer shall not disassemble or deconstruct any of the Goods in any manner designed to infringe on manufacturer's IP rights without manufacturer's express approval.

#### **OTHER TERMS**

(A) Any limitations on liability set forth herein as to MAM, as well as commitments to indemnify and save MAM harmless, apply likewise for the benefit of its owners, agents, officers, employees, representatives, affiliates (subsidiaries and entities with common ownership), and assigns.

(B) Buyer agrees that jurisdiction and venue for any disputes arising from the accepted purchase order shall be mandatorily brought in the state or federal courts located in Dauphin County, Pennsylvania.

**(C) MAM AND BUYER WAIVE THE RIGHT TO A TRIAL BY JURY IN ANY LAWSUIT ARISING OUT OF OR RELATING TO AN ACCEPTED PURCHASE ORDER.**

(D) These Terms shall be construed without aid of any canon, custom or rule of law requiring construction against the drafter.

(E) A purchase order may not be assigned without MAM's express written consent.

(F) For purchases to be financed by MAM, these Terms shall be in addition to the applicable financing and security agreement.

(G) If any term in these Terms is determined to be unenforceable, Buyer agrees that such provision shall be severed from the Terms and that Buyer shall remain bound by the remaining provisions.

(H) The prevailing party in any suit to enforce these Terms as part of an accepted purchase order shall be entitled to recover its reasonable attorney fees and legal costs related thereto.